

NEW CRIMINAL LAWS + POCSO

BNS · BNSS · BSA — replacing IPC, CrPC & Evidence Act

Enforced from **1 July 2024** | Marking a new chapter in the Indian judicial system

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

StudyPlanner



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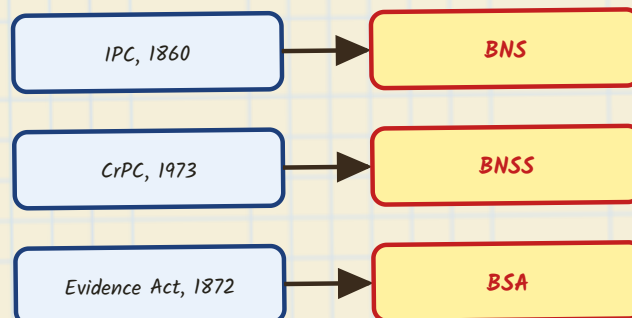
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THREE NEW CRIMINAL LAWS

In **December 2023**, India witnessed a historic overhaul of its **150-year-old** criminal legal framework. The colonial-era laws — the **Indian Penal Code (IPC)**, the **Code of Criminal Procedure (CrPC)**, and the **Indian Evidence Act** — were replaced by three modern legislations: **BNS** (Bharatiya Nyaya Sanhita), **BNSS** (Bharatiya Nagarik Suraksha Sanhita), and **BSA** (Bharatiya Sakshya Adhinyam). All three were **enforced on 1 July 2024**, marking a new chapter in the Indian judicial system.

🧠 Fig 1: Old Laws → New Laws



All enforced: 1 July 2024



Colonial vs Not Colonial – A Common Trap!

A common exam trap says all three parent laws were "colonial." Check the dates:

- **IPC** — 1860, from the time of **Thomas Babington Macaulay** → colonial era
- **Indian Evidence Act** — 1872, when **Lord Mayo** was Viceroy (the first, non-synchronized census was conducted during his time) → colonial era
- **CrPC** — enacted 1973, enforced 1 April 1974 → **NOT colonial era** (independent India)



Trivia – Census Connection

The first census (not fully synchronized) was held during Lord Mayo's time (1872). The first fully synchronized census of India was conducted during Lord Ripon's time.

Common Mistake

Don't assume all three old laws were colonial-era. Only the **IPC (1860)** and the **Indian Evidence Act (1872)** are colonial. The **CrPC (1973/74)** was enacted well after Independence!

Quick Reference – Sections at a Glance

Old Law (Sections)	New Law	Key Change Figures
IPC, 1860 (511 sections)	BNS	Now 358 sections
CrPC, 1973 (531 sections)	BNSS	177 revised, 9 new, 14 repealed
Evidence Act, 1872 (170 sections)	BSA	24 alterations: 2 added, 6 repealed

Exam Tip

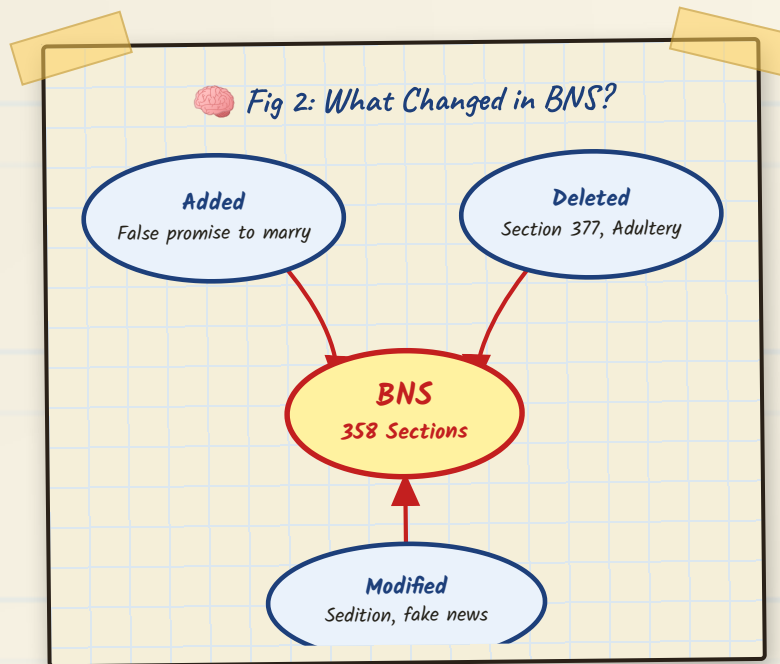
A steno-exam question asked "what did the new criminal laws do?" — the correct theme is **justice system reform**, not anything about trade. Watch out for such distractor options!

Transition Rule

The old **IPC** and **CrPC** will run concurrently with the new laws until all pending cases under them are disposed of.

BNS – BHARATIYA NYAYA SANHITA

The BNS replaces the IPC of 1860, which originally had 511 sections. The BNS now has **358 sections**.



New Offences Added

- **False promise to marry** — deceiving someone into a relationship with a fake promise of marriage
- **Mob lynching** — a mob beating a person, sometimes to death
- **Organized crime**
- **Terrorism**
- **Attempt to commit suicide**
- **Community service** — added as a new form of punishment (not a new crime) — e.g. cleanliness drives for petty theft

Provisions Deleted



- **Section 377, IPC** — earlier made same-sex intercourse between adults a crime; already decriminalized by the Supreme Court in the **Navtej Singh Johar** case, and now completely removed
- **Adultery** and certain other **gender-based provisions** deleted

Common Mistake

Section 377 wasn't deleted by BNS out of nowhere — the Supreme Court had already **decriminalized** it in the Navtej Singh Johar judgment; BNS simply removed the now-defunct provision.

Modifications

- **Fake news** — criminalized
- **Sedition** replaced with a new provision carrying a **mandatory minimum sentence**
- **Graded fine** for property damage
- **Stricter punishment for negligent death** — e.g. rash/negligent driving cases (as in a recent Delhi-Meerut Highway incident)

Memory Trick

Think "A-D-M" for BNS changes: **A**dded (false promise to marry, mob lynching, terrorism, organized crime), **D**eleted (377, adultery), **M**odified (sedition, fake news, negligent death).

Still-Open Issue: Age of Criminal Responsibility

This carries over unchanged from the IPC:

- **Below age 7** — no legal responsibility at all, regardless of the act committed
- **Age 7–12** — triable only if it is shown the child understood the nature and consequences of the act; otherwise not triable

Exam Tip

Remember the IPC's original section count: **511** → **358** under BNS. That's the single most commonly asked number in this topic.

BSA — BHARATIYA SAKSHYA ADHINIYAM

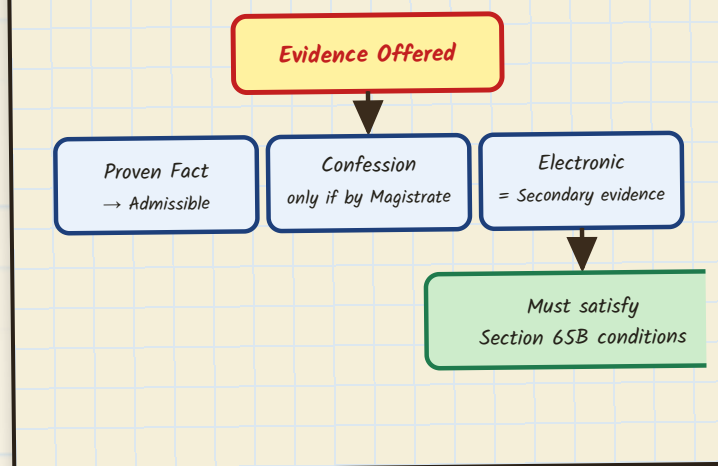
The BSA replaces the Indian Evidence Act of 1872, which had 170 sections. It brings **24 alterations** — 2 sections added, 6 repealed.



What Stays the Same

- Only admissible evidence is allowed
- Proven facts are accepted
- Police confessions are valid only if recorded by a magistrate

Fig 3: Is the Evidence Admissible?



Electronic Evidence

Electronic records are provided for as evidence. However, electronic data is treated as **secondary evidence** — its reliability must first be proven. This provision was brought in through the Information Technology Act, under Section 65A. Section 65B lays down

the conditions that must be satisfied before such electronic data can be treated as evidence.



Understand it like this...

Electronic evidence (like a WhatsApp chat or CCTV footage) isn't automatically trustworthy — it must first pass the "reliability test" laid out in Section 65B before a court accepts it, just like you'd verify a photocopy against the original.

Joint Trials

The BSA introduces **joint trials** — multiple individuals can now be tried together, simultaneously, for the same matter.



Exam Tip

Lock in the numbers: Evidence Act 1872 → **170 sections** → BSA brings **24 alterations** (2 added, 6 repealed).



Common Mistake

Electronic evidence is NOT automatically valid just because it's "official-looking." It remains **secondary evidence** until it clears the Section 65B reliability conditions.

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BNSS — BHARATIYA NAGARIK SURAKSHA SANHITA

The BNSS replaces the CrPC of 1973 (which had 531 sections). Of these, **177 sections were revised**, 9 are new, and 14 have been repealed (completely removed).

Structural & Digital Changes

- Courts restructured — no separate role for the Metropolitan Magistrate

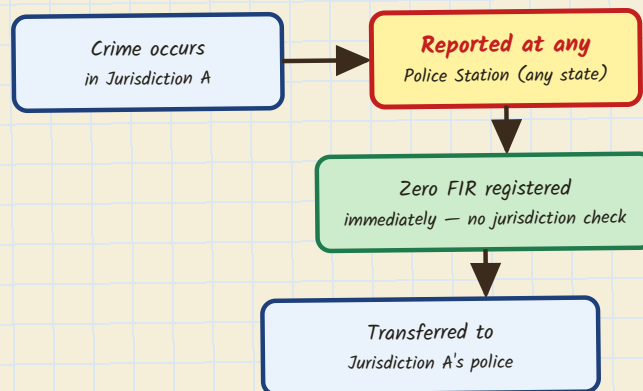
- **Digital push** — electronic mode made mandatory at **all stages of investigation**, to enable speedy trials

Detention & Arrest Rules

- **No bail** for undertrials facing **life imprisonment** or the **death penalty**
- **Alternative to arrest** — the accused may give a **security bond** instead of being arrested
- **Community service** is defined as a form of punishment (as also seen under BNS)



Fig 4: How Does a Zero FIR Work?



New Procedures

- **Zero FIR** — an FIR can be registered at any police station, regardless of jurisdiction, and later transferred to the correct one
- **Transferable FIRs** can be registered with the three new laws
- Police must **share the charge sheet and case documents** with the victim
- **Witness protection** to be ensured by the state

Forensic & Documentation

- **Forensic investigation mandatory** for offences punishable with **7 years or more**
- **Video recording mandatory** for all searches, with or without a warrant — to be submitted to the magistrate



Memory Trick

BNSS's biggest theme: "**Digital push**" — electronic mode at every investigation stage, video recording of searches, and forensic evidence for serious (7+ year) offences — all pushing towards speedy, tech-enabled trials.

✗ Common Mistake

Don't confuse a **Zero FIR** with a regular FIR. A Zero FIR can be filed at *any* police station irrespective of where the crime occurred — it is registered immediately and transferred later.

🎯 Exam Tip

Still-open issue to note: **police custody can be extended up to 15 days**, within the first 40–60 days of investigation.

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CROSS-LAW HIGHLIGHTS *New Offences Recognized (Across the Laws)*

Terrorism, mob lynching, and organized crime are now explicitly recognized, along with **stricter punishment for crimes against women and children**.

- States can make amendments to the **BNSS** as per their convenience (smooth transition measure)
- **BNS** adds a new provision on sexual crimes against **men and transgender persons**
- The **IPC and CrPC** run concurrently with the new laws until pending cases are disposed of

e-FIR & Zero FIR Reforms

- FIRs can be filed in **multiple languages**
- FIRs — including Zero FIRs — can be filed **online, without visiting a police station**

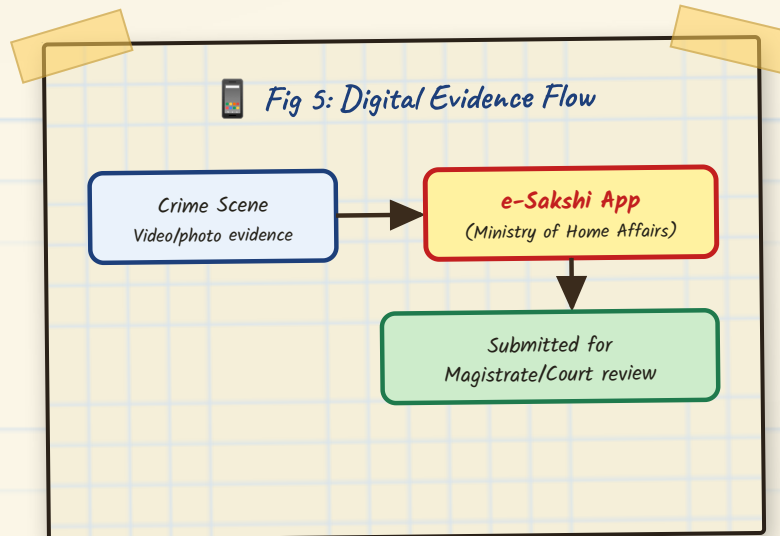
Procedural Improvements

- Videography compulsory during search and seizure — no charge sheet is valid without such recording
- Forensic investigation mandatory for offences punishable with 7+ years
- Medical examinations can be requested by police in certain cases



Rights of Victims & Informants

- Victims receive a copy of the charge sheet / police report after it is filed
- States must establish witness protection schemes



Other Notable Provisions

- Community service introduced for petty offences
- Mob lynching by five or more people → punishable with death or life imprisonment
- Summary trials for offences with punishment up to 3 years — aim: resolve 40% of cases faster
- First-time offenders are eligible for bail after serving 1/3rd of their sentence (e.g., a 9-year sentence → eligible after 3 years)
- Trial in absentia is possible, including for fugitives
- Technology: the e-Sakshi app (developed under the Ministry of Home Affairs) is used to record and upload crime scene evidence for digital evidence handling



Exam Tip

Remember the "40% faster" figure with **summary trials (punishment $\leq$ 3 years)** — a favourite number in this topic.

Memory Trick

"1/3rd out, rest on parole thought" — first-time offenders get bail after serving 1/3rd of their sentence.

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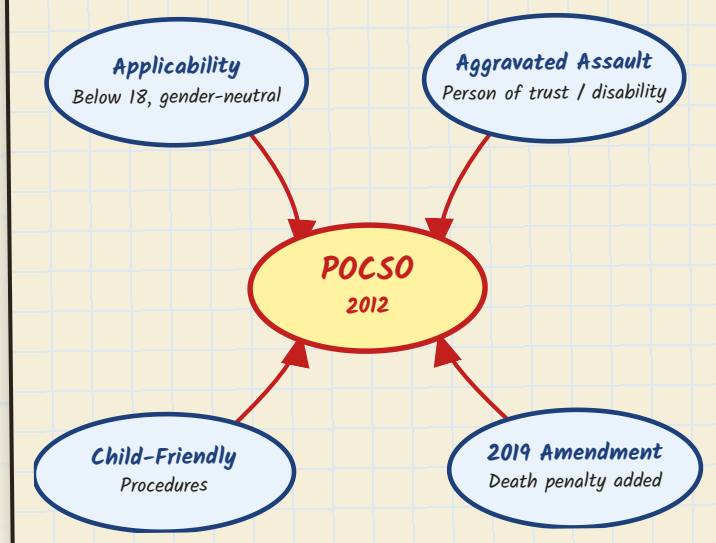
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POCSO ACT, 2012

The **Protection of Children from Sexual Offences (POCSO) Act** came into force on **14 November 2012**. It was brought in alignment with India's ratification of the **UN Convention on the Rights of the Child** in 1992.

 Fig 6: POCSO Mind Map



Applicability

- Covers sexual offences against children **below 18 years**
- **Gender-neutral** — protects boys and girls equally

- Gives clear definitions of **sexual harassment** and **pornography**

Aggravated Sexual Assault

Includes offences committed by a **person in a position of trust** (family member, teacher, doctor, police) — someone the child is expected to trust — and offences against a child who is **physically or mentally disabled**.

Child-Friendly Procedures

- Child's statement to be recorded **at home** or wherever the child is comfortable
- **No repeated questioning** and no exposure to the accused
- **Special courts** established for speedy trial — ideally completed within **one year**



Memory Trick

POCSO's child-friendly triad: **statement at home**, **no repeat questioning**, **no exposure to the accused** — protecting the child's mental wellbeing throughout the process.

Abetment & Reporting

- Anyone who **abets/incites** an offence under POCSO gets the **same punishment** as the main offender (not a reduced punishment)
- **Mandatory reporting** of child sexual abuse — failure to report is itself a punishable offence
- The child's **identity cannot be disclosed** in media or during trial proceedings

Common Mistake

Don't assume an abettor gets a lesser (e.g. half) punishment. Under POCSO, someone who instigates such an offence receives the **same punishment** as the main offender.

2019 Amendment

Introduced the **death penalty** for **aggravated penetrative sexual assault**.

Rights of Child Victims

- Right to be **heard**

- Right to legal aid
- Right to medical assistance, compensation and rehabilitation
- Right to privacy and safety at all stages of the legal process

The Act has an **overriding effect** over other inconsistent laws — if another law prescribes a different (usually lesser) punishment for the same act, **POCSO's provisions prevail**.

1992

India ratifies the UN Convention on the Rights of the Child.

14 Nov 2012

POCSO Act comes into force.

2019

Amendment introduces the death penalty for aggravated penetrative sexual assault.



POCSO trial target: completed within ONE YEAR!



Exam Tip

POCSO is **gender-neutral**, applies below **18 years**, came into force in **2012**, and got the **death penalty** provision added in **2019** — the four most commonly tested facts.

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Print Notes